

In other words, there is “no tort duty to guard against purely economic losses.” (Southern California Gas Leak Cases, *supra*, 7 Cal.5th at p. 398.) “Economic loss consists of ‘ ‘ ‘ ‘ ‘damages for inadequate value, costs of repair and

replacement of the defective product or consequent loss of profits -- without any claim of personal injury or damages to other property....” ’ ’ ”  
’ ” (Robinson Helicopter Co., Inc., supra, 34 Cal.4th at p. 988; see Jimenez v. Superior Court (2002) 29 Cal.4th 473, 483; Northern American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 777, fn. 8.)

The complaint does not allege any injury to any person arising from the negligence-based cause of action, and Plaintiff concedes as much in opposition. Plaintiff concedes, in opposition to the motion, that this is required. See opposition, page 5, lines 3-11, correctly noting that the “component part” exception to the economic loss rule is applicable to actions against automobile repair shops. Plaintiff fails, however, to cite any portion of her complaint that alleges Defendant's repairs caused injury to another part of her car or to her personal property. The Court has reviewed the fifth cause of action, and finds no such allegations are present in the FAC. The motion is therefore granted.

b. Sixth  
Cause of Action, Fraud – Concealment

Plaintiff does not challenge the motion directed to the sixth cause of action, and therefore the motion is granted without leave to amend.

c.  
Leave to Amend

Plaintiff neither requests leave to amend nor indicates how she would amend if given leave to do so. It is not up to the Court to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.  
Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.

In light of Plaintiff's failure to show how she would amend if given leave to do so, the motion for judgment on the pleadings is granted without leave to amend.

d.

Notice

Defendants are ordered to give notice.